

26STCV11782 26STCV11782

County: los-angeles

Division: Civil Law and Motion

Department: 307

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Case Number: 26STCV11782 Hearing Date: August 31, 2026 Dept: 307

12 TENTATIVE RULING 9:00 a.m., Monday, August 31, 2026

HAGOP D.

TCHAKERIAN v. CITY OF LOS ANGELES [26STCV11782]

DEFENDANT

CITY OF LOS ANGELES'S DEMURRER TO THE COMPLAINT

MEET AND

CONFER: DEFECTIVE Although

the City's counsel indicates that he sent written meet and confer correspondence, Plaintiff did not respond and the parties did not meet and confer telephonically, by video conference, or in-person in compliance with Code Civ. Proc. § 430.41. (Travis Decl., ¶¶ 2-3.)

TIMELINE:

FEHA employment dispute

7/16/2014: Plaintiff Hagop D. Tchakerian

("Plaintiff") sustains a wrist injury while employed by Defendant City of Los Angeles (the "City") as an Instrument Mechanic for the Los Angeles World Airports ("LAWA"). LAWA allows Plaintiff to work with modified duties for approximately one year.

7/24/2015: LAWA places Plaintiff on IOD/FMLA

leave. Although Plaintiff's leave was intended to end in October 2015, LAWA never scheduled an interactive process meeting and Plaintiff never returned to work. Disability retirement was approved with an effective date of 3/22/2017.

3/19/2019: Plaintiff files a first lawsuit against the City in the matter of Tchakerian v. City of Los Angeles (LASC Case No. 19SMCV00521). Plaintiff files a Third Amended Complaint against the City on 7/30/2021, alleging causes of action for negligence and violations of Gov. Code section 12940, et seq. (e.g. age discrimination, disability discrimination, failure to provide reasonable accommodation). The first lawsuit is ultimately dismissed with prejudice in favor of the City on 10/11/2022 after the City's demurrer to the third amended complaint is sustained without leave to amend on 9/8/2022.

9/28/2022: LAWA is notified that Plaintiff was no longer disabled from performing Instrument Mechanic duties after the Los Angeles City Employees Retirement System ("LACERS") medically cleared Plaintiff to return to his former position.

12/13/2022: LACERS approves Plaintiff's return to work.

1/16/2023: Plaintiff sends an email to Workers' Compensation Analyst, Isabel Rivera, requesting a disability accommodation for a shoulder injury.

1/17/2023: Plaintiff reports to work for the New Employee Orientation.

1/18/2023: Plaintiff reports to work at a position at Los Angeles International Airport and reviews the Instrument Mechanic position duties. During a meeting with his supervisors, Plaintiff informs management that he had limited movement in his wrist and was unable to carry heavy loads. Plaintiff requests a light duty assignment as an accommodation. Shortly thereafter, Plaintiff was placed on an approved leave of absence as a temporary accommodation while LAWA sought information regarding the conflicting information from LACERS and Plaintiff.

2/1/2023, 4/4/2023, 5/4/2023, and 6/6/2023:

LAWA holds multiple interactive meetings with Plaintiff as part of the City's Reasonable Accommodation Assessment ("RAA") process. At the conclusion of the final meeting, LAWA informs Plaintiff that he would be considered for a reassignment and referred to the Citywide Placement Officer to search for a vacant position

that could accommodate Plaintiff's work restrictions.

7/3/2023: Plaintiff participates in a placement meeting with the City's Community Development Division to consider him for placement as an Administrative Clerk. Plaintiff was not selected. LAWA notifies Plaintiff that it would continue looking for qualifying vacant positions.

9/25/2023: LACERS notifies LAWA that Plaintiff had applied for disability retirement on 6/26/2023. In October 2023, Plaintiff's RAA status is placed on hold pending retirement approval from LACERS.

3/19/2024:

Plaintiff is invited to interview for an Instrument Mechanic position,

scheduled

for 4/2/2024. Shortly thereafter, the City cancels the interview on the grounds that Plaintiff was "already on the payroll."

4/13/2026: Plaintiff files the Complaint, alleging causes of action for:

1. FEHA Disability Discrimination
2. FEHA Failure to Accommodate
3. FEHA Failure to Engage in the Interactive Process
4. FEHA Retaliation
5. FEHA Age Discrimination
6. FEHA Failure to Prevent Discrimination
7. Interference with FEHA Rights
8. Declaratory Relief (Compensatory Damages)

9. Injunctive Relief

6/30/2026: The City files this Demurrer, which is followed by Plaintiff's Opposition (7/15/2026) and the City's Reply (7/23/2026).

TENTATIVE

RULING: DEFENDANT CITY OF LOS ANGELES'S DEMURRER TO THE COMPLAINT is SUSTAINED with LEAVE TO AMEND in part, SUSTAINED without leave to amend in part, and OVERRULED in part.

I. DEMURRER

The City demurs to the Complaint on the grounds that Plaintiff has not alleged the exhaustion of his administrative remedies with the DFEH. The City also demurs to the third and fifth through ninth causes of action in the Complaint pursuant to Code of Civil Procedure section 430.10, subdivision (e).

A.

Exhaustion
of Administrative Remedies – SUSTAINED with LEAVE TO AMEND

The Court finds that Plaintiff fails to adequately allege that he exhausted his administrative remedies on all causes of action prior to filing his Complaint. "An employee who wishes to file suit under the FEHA must exhaust the administrative remedy provided by the statute by filing a complaint with the DFEH, and must obtain from the DFEH a notice of right to sue. The timely filing of an administrative complaint before the DFEH is a prerequisite to the bringing of a civil action for damages." (Pollock v. Tri-Modal Distribution Services, Inc. (2021) 11 Cal.5th 918, 93, citing Romano v. Rockwell Internat., Inc. (1996) 14 Cal.4th 479, 492, internal quotations omitted.) "[T]o exhaust his or her administrative remedies as to a particular act made unlawful by [FEHA], the claimant must specify that act in the administrative complaint, even if the complaint does specify other cognizable wrongful acts." (Okoli v. Lockheed Technical Operations Co. (1995) 36 Cal.App.4th 1607, 1613, quoting Martin v. Lockheed Missiles & Space Co. (1994) 29 Cal.App.4th 1718, 1724 (Martin).) In the context of FEHA, "[t]he failure to exhaust an administrative remedy is

a jurisdictional, not a procedural, defect...” (Martin, supra, 29 Cal.App.4th at p. 1724.) Thus, the “failure to exhaust administrative remedies is a proper basis for demurrer.” (Parthemore v. Col (2013) 221 Cal.App.4th 1372, 1379 (Parthemore).)

At the pleading stage, a general allegation that the plaintiff timely filed an administrative complaint with the appropriate department is sufficient to plead exhaustion. (Williams v. Housing Authority of Los Angeles (2004) 121 Cal.App.4th 708, 721 (Williams).) “A complaint is vulnerable to demurrer on administrative exhaustion grounds when it fails to plead either that administrative remedies were exhausted or that a valid excuse exists for not exhausting.” (Parthemore, supra, 221 Cal.App.4th at p. 1379.) “A complaint is also vulnerable to demurrer on administrative exhaustion grounds where the complaint's allegations, documents attached thereto, or judicially noticeable facts indicate that exhaustion has not occurred and no valid excuse is alleged in the pleading to avoid the exhaustion requirement.” (Ibid.)

Here, the Complaint is nearly silent as to Plaintiff's compliance with the prerequisite exhaustion of his administrative remedies. (See Compl., generally.) At most, Plaintiff attached a Right to Sue Notice from the EEOC (dated 1/13/2026) as Exhibit A to his Complaint, but the EEOC letter lacks any factual specificity regarding the nature of the wrongs complained of. (Id., Exh. A.) After filing the Complaint, Plaintiff subsequently filed a copy of his Right to Sue Notice from the Civil Rights Department (“CRD”), dated 12/15/2025. (See Notice of Lodging, 5/22/2026.) Pursuant to the City's request, the Court has taken judicial notice of the existence of this document. (See RJN, Exh. A.) However, like the EEOC's letter, the CRD's letter itself does not identify the specific wrongful conduct that was alleged in connection with Plaintiff's CRD complaint. (Ibid.) Because the Right to Sue letters cited by Plaintiff lack the level of particularity required in, for example, Martin, supra, 29 Cal.App.4th at p. 1724, the City argues that Plaintiff fails to demonstrate that he exhausted his administrative remedies.

While the Court agrees with the City's ultimate conclusion that Plaintiff has not adequately alleged on the face of the Complaint that he exhausted his administrative remedies with the DFEH, the Court reaches this conclusion for different reasons. The Martin cited by the City decision does not address

the pleading requirements for the administrative remedy pre-requisite and instead considered the plaintiff's evidentiary burden at summary judgment. (Martin, supra, 29 Cal.App.4th at p. 1724.) At the pleading stage, less factual specificity is required. (See Williams, supra, 121 Cal.App.4th at p. 721; see Parthemore, supra, 221 Cal.App.4th at p. 1379.) However, the issue with Plaintiff's Complaint is that he fails to allege even a general allegation that he exhausted his administrative remedies with the DFEH for each cause of action asserted. The EEOC notice does not prove that Plaintiff made his California FEHA theories known to the DFEH. Likewise, absent a direct allegation in the Complaint attesting that Plaintiff adequately exhausted his administrative remedies, the judicially noticed CRD notice, standing alone, is also insufficient for the same reason. A general averment of timely filing with the appropriate agency and Plaintiff's receipt of a right to sue letter, if alleged in the body of the Complaint, would satisfy this pleading obligation. While Plaintiff is not required to assert the level of factual particularity sought by the City, he must minimally allege that he complied with his exhaustion obligations to proceed beyond the pleading stage.

Therefore,

the City's demurrer to Plaintiff's entire Complaint on the basis of Plaintiff's failure to allege that he exhausted his administrative remedies is SUSTAINED with LEAVE TO AMEND.

B.

3rd

Cause of Action: FEHA Failure to Engage in the Interactive Process – SUSTAINED with LEAVE TO AMEND

Plaintiff

fails to adequately allege a claim for failure to engage in the interactive process. FEHA requires an employer and a disabled employee to engage in a timely, good faith "interactive process" to identify or implement effective, reasonable accommodations that

will enable the employee to perform their job effectively. (Gov. Code, § 12940, subd. (n); 2 Cal. Code Regs. § 11069(a); Scotch v. Art Institute of California (2009) 173 Cal.App.4th 986, 1013.) To

prevail on a claim under Government Code section 12940, subdivision (n), the

employee must be able to identify an available accommodation the interactive process should have produced." (Id. at pp. 1018–1019.)

"An employer

cannot be held liable for failing to engage in [the] interactive process when the employee was in fact offered a reasonable accommodation.” (Miller v. Department of Corrections & Rehabilitation, 2024) 105 Cal.App.5th 261, 282.)

Here, Plaintiff

alleges that the City refused to schedule an interactive meeting with Plaintiff, refused to reevaluate the essential functions of an Instrument Mechanic, and refused to consider modified duties. (Compl., ¶¶ 20, 49-50.) Plaintiff further alleges that the City refused to accommodate Plaintiff’s permanent work restrictions, refused to consider transitional duty, and refused to consider alternative placements for Plaintiff. (Id. ¶ 24.) Plaintiff also alleges that the City cancelled his 2024 job interview for the same position under the false pretext that he was already on the City’s payroll. (Id. ¶¶ 30, 51.) The Court finds these allegations are negated by the exhibits attached to the Complaint.

First, Plaintiff’s

allegations that the City refused to schedule an interactive meeting with Plaintiff is plainly contradicted by the City’s RAA letters (dated 2/22/2023 and 7/20/2023), which reflect that the City conducted at least four interactive process meetings with Plaintiff. (Compl., Exh. B-1.) The City’s RAA letters (dated 7/20/2023 and 10/3/2023) also reflect that the City considered alternative job placements for Plaintiff that did not conflict with his medical restrictions. (Ibid.)

Second,

the exhibits attached to the Complaint reflect that Plaintiff was, in fact, offered an accommodation (temporary approved medical leave and re-assignment), even if it did not permit Plaintiff’s preferred light-duty restrictions. LAWA’s February 2023 RAA letter indicates that Plaintiff requested that LAWA “create a customized position specifically tailored to accommodation [Plaintiff’s] limitations,” in light of the changes that had been made to the essential functions of Plaintiff’s former position. (Compl., Exh. B-1.) In other words, Plaintiff seemingly alleges that the City’s failure to create a special Instrument Mechanic position that was exempt from several duties required for the job classification constituted a refusal to engage in the interactive process. However, “FEHA does not obligate an employer to choose the best accommodation or the specific accommodation a disabled employee or applicant seeks . . . It requires only that

the accommodation chosen be 'reasonable.'..." (Raine v. City of Burbank (2006) 135 Cal.App.4th 1215, 1222.) "Although FEHA does not define what constitutes 'reasonable accommodation' in every instance, examples provided in the statute itself and the regulations governing its implementation include job restructuring, part-time or modified work schedules or 'reassignment to a vacant position.' ..." (Id. at pp. 1222-1223.) "A reassignment, however, is not required if 'there is no vacant position for which the employee is qualified.'" (Id. at p. 1223.) Because the Complaint has not identified any available reasonable accommodation that should have been produced by the interactive process, Plaintiff has not stated a claim for failure to engage in the interaction process as a matter of law.

Therefore,
the City's demurrer to Plaintiff's third cause of action is SUSTAINED with
LEAVE TO AMEND.

C.

5th

Cause of Action: FEHA Age Discrimination – SUSTAINED with LEAVE TO AMEND

Plaintiff

fails to adequately allege a claim for age discrimination under FEHA. To establish a FEHA discrimination claim, a plaintiff must demonstrate that: (1) he was a member of a protected class; (2) he was qualified for the position sought or he was performing competently in the position held; (3) he suffered an adverse employment action; and (4) some other circumstance suggesting defendant's discriminatory motive. (McCaskey v. California State Auto. Assn. (2010) 189 Cal.App.4th 947, 979; see CACI, No. 2500.)

Here, Plaintiff alleges that the City discriminated against Plaintiff based on his age because Plaintiff is over 40 years old and the City "retained and hired younger Instrument Mechanics while refusing to reinstate Plaintiff." (Compl., ¶¶ 58-59.) The City argues that Plaintiff has not alleged any facts suggesting that the City's personnel decisions involving Plaintiff were motivated based on his age. "A plaintiff in [an age] discrimination action has the burden of proving... that the plaintiff's [age] was a substantial factor in the adverse employment decision. [Citation.]" (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 375.) "[A] plaintiff must show actions taken by the employer from which one can infer, if

such actions remain unexplained, that it is more likely than not that such actions were ‘based on a [prohibited] discriminatory criterion...’” (Sandell v. Taylor-Listug, Inc. (2010) 188 Cal.App.4th 297, 310, internal quotations omitted.)

Here, the

Court agrees with the City that Plaintiff has not alleged adequate facts to demonstrate that the City harbored age-based animus toward Plaintiff that substantially motivated the purported adverse actions against Plaintiff. Beyond vaguely alleging that “younger” employees were treated differently than Plaintiff, he does not state any facts identifying these “younger” employees or facts suggesting that they could be properly treated as comparators to Plaintiff, including their ages, positions, medical restrictions, LACERS application statuses, accommodations requests, ability to perform the essential functions of the Instrument Mechanic position, and years of experience, the decision makers involved in the alleged unequal treatment of the employees, or the dates of the differential treatment. Further, Plaintiff’s Complaint is permeated with allegations suggesting that Plaintiff’s inability to perform the essential functions of the Instrument Mechanic position was the motivating factor in the City’s decisions involving Plaintiff. There is no indication that Plaintiff’s age contributed substantially to this decision-making.

Therefore,

the City’s demurrer to Plaintiff’s fifth cause of action is SUSTAINED with LEAVE TO AMEND.

D.

6th

Cause of Action: FEHA Failure to Prevent Discrimination –OVERRULED

The City

argues that Plaintiff’s sixth cause of action for failure to prevent discrimination is entirely derivative of Plaintiff’s underlying discrimination and retaliation claims and therefore must fail along with Plaintiff’s underlying FEHA claims. Although the City has successfully challenged Plaintiff’s fifth cause of action for age-based discrimination, this demurrer does not address the adequacy of Plaintiff’s first cause of action for disability-based discrimination or his fourth cause of action for retaliation. These claims, if successful, provide a separate basis to support Plaintiff’s failure to prevent claim. Because the City has not demonstrated that Plaintiff’s first or fourth

causes of action are inadequately pled, the City has not overcome its burden of demonstrating that the sixth cause of action is categorically insufficient.

Because

the City fails to demonstrate that the factual allegations are insufficient to state a claim for failure to prevent discrimination, this cause of action is only inadequately pled to the extent that Plaintiff fails to allege that he exhausted his administrative remedies. (See supra, Section I.A.) Therefore, the City's demurrer to Plaintiff's sixth cause of action is OVERRULED.

E.

7th

Cause of Action: Interference with FEHA Rights – SUSTAINED without leave to amend

Plaintiff's

seventh cause of action asserts a violation of Government Code section 12940, subdivision (f). Under this subdivision, it is unlawful for an employer "to require any medical or psychological examination of an employee, to make any medical or psychological inquiry of an employee, to make any inquiry whether an employee has a mental disability, physical disability, or medical condition, or to make any inquiry regarding the nature or severity of a physical disability, mental disability, or medical condition" except to the extent that the employer can demonstrate the examination or inquiry to be job-related and consistent with business necessity. (Gov. Code, § 12940, subd. (f)(1)-(2).)

Here,

Plaintiff alleges that the City violated Government Code section 12940, subdivision (f) by preventing Plaintiff's reinstatement in his position, manipulating the essential functions of his former job, cancelling his 2024 interview for the same position, and refusing to engage in the interactive process. (Compl., ¶ 66.) None of the conduct alleged in support of the seventh cause of action is relevant to the proscribed conduct identified in Government Code section 12940, subdivision (f). Further, Plaintiff is not entitled to duplicative recovery for the same conduct which already supports his other causes of action for disability discrimination, failure to provide reasonable accommodation, and retaliation, which the City does not challenge in this demurrer (beyond the administrative remedy requirement).

Because

Plaintiff does not address how the City's conduct falls within the conduct prohibited under Government Code section 12940, subdivision (f), the Court finds that Plaintiff cannot reasonably amend his Complaint to state a violation of subdivision (f). Therefore, the City's demurrer to Plaintiff's seventh cause of action is SUSTAINED without leave to amend.

F.

8th

Cause of Action: Declaratory Relief – SUSTAINED without leave to amend

Plaintiff

fails to plead sufficient facts to constitute a basis for declaratory relief. Declaratory relief may be warranted where a plaintiff alleges “an actual, present controversy must be pleaded specifically” and “the facts of the respective claims concerning the [underlying] subject must be given.” (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 80.) However, “[w]here facts appear from the face of the complaint which would justify a trial court in concluding that its determination is not necessary or proper, it has been held that the court may sustain a general demurrer to the complaint for declaratory relief.” (Moss v. Moss (1942) 20 Cal.2d 640, 642.)

Here, Plaintiff

seeks a judicial declaration that: (1) the City violated FEHA, (2) the PDES used to determine the essential functions of Plaintiff's Instrument Mechanic position is invalid as applied; and (3) Plaintiff is entitled to reinstatement in his position. (Compl., ¶ 70.) Plaintiff effectively seeks the same relief that would already be available to him through his independent FEHA claims, and thus, Plaintiff fails to demonstrate how declaratory relief in his favor would “have any practical consequences.” (Meyer v. Sprint Spectrum L.P. (2009) 45 Cal.4th 634, 648.) Declaratory relief is unavailable where it simply duplicates other causes of action. (Hood v. Superior Court (1995) 33 Cal.App.4th 319, 324; see Cal. Ins. Guar. Ass'n v. Superior Court (1991) 231 Cal.App.3d 1617, 1624 [“availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief.”].) Because Plaintiff's claim for declaratory relief is essentially duplicative of his FEHA claims, the eighth cause of action is insufficiently pled.

Therefore,

the City's demurrer to the eighth cause of action is SUSTAINED without leave to

amend.

G.

9th

Cause of Action: Injunctive Relief – SUSTAINED with LEAVE TO AMEND

Plaintiff

fails to allege sufficient facts to constitute a basis for injunctive relief. “The elements of a cause of action for injunctive relief are (1) a tort or other wrongful act constituting a cause of action; and (2) irreparable injury, i.e., a factual showing that the wrongful act constitutes an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award.” (Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410, internal citation omitted.) “Injunctive relief is a remedy and not, in itself, a cause of action, and a cause of action must exist before injunctive relief may be granted.” (Shell Oil Co. v. Richter (1942) 52 Cal.App.2d 164, 168; City of S. Pasadena v. Department of Transp. (1994) 29 Cal.App.4th 1280, 1293.)

Here, Plaintiff

seeks an order requiring the City to: (1) reinstate Plaintiff, (2) remove discriminatory barriers, (3) conduct a lawful essential functions analysis, and (4) engage in a good faith interactive process. (Compl., ¶ 72.) As discussed above, however, Plaintiff fails to allege the exhaustion of his administrative remedies with the DFEH. Without compliance with this jurisdictional requirement, the Complaint does not sufficiently state a claim for any underlying cause of action against the City involving the conduct which Plaintiff seeks to enjoin. Thus, the Complaint, as it stands, does not support the requested remedy of injunctive relief.

Therefore,

the City’s demurrer to the ninth cause of action is SUSTAINED with LEAVE TO AMEND.

II. REQUESTS

FOR JUDICIAL NOTICE

The City

requests judicial notice of the following documents: (1) the Notice of Case Closure and Right to Sue issued by the CRD (dated December 15, 2025) (RJN, Exh.

A); (2) the Complaint filed in Tchakerian v. City of Los Angeles (LASC Case No. 19SMCV00521) (RJN, Exh. B); (3) the order sustaining the demurrer in Tchakerian v. City of Los Angeles (LASC Case No. 19SMCV00521) (dated September 12, 2022) (RJN, Exh. C); and (4) the judgment of dismissal in Tchakerian v. City of Los Angeles (LASC Case No. 19SMCV00521) (dated October 11, 2022) (RJN, Exh. D). The Court takes judicial notice of Exhibit A pursuant to Evidence Code section 452, subdivisions (c) and (h) and of the existence of the court records submitted as Exhibits B through D pursuant to Evidence Code section 452, subdivision (d).

Defendant City of Los Angeles to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 8/28/26 at 11:30.